

NOTICE OF INTENT TO SOLE SOURCE

Contracting Opportunities Announcement Type: Special Notice

Announcement Number: AMDTCNOI2600954

Subject: Boulder Micro-Fabrication Facility (BMF) Tystar Furnace Service Contract

Introduction

This is a notice of intent, not a request for a quotation. A solicitation document will not be issued, and quotations will not be requested.

Purpose

The National Institute of Standards and Technology (NIST) intends to negotiate a firm-fixed priced purchase order on a sole source basis with Tystar Corporation, located at 7050 Lampson Avenue, Garden Grove, California 92841-3912, USA. The purchase order will specifically procure a service contract for the BMF's Tystar MiniTytan 4600 furnace for atmospheric and Low-Pressure Chemical Vapor Deposition (LPCVD) tube changes, annual Preventative Maintenance (PM), and emergency maintenance visits. This tool is a critical piece of the BMF infrastructure used to deposit high-quality dielectric films onto substrates. To keep a high tool uptime, the BMF requires a service contract to maintain this tool and offer support if the tool becomes inoperable.

The period of performance shall include a base period of twelve (12) months, plus four (4) 12-month option periods.

Authority

This acquisition is being conducted under the authority of FAR Subpart 12.102(b) allowing the Contracting Officer (CO) to solicit from one source. The North American Industry Classification System (NAICS) code for this acquisition is 333242 – Semiconductor Machinery Manufacturing with the small business size standard of 1,500 employees.

Description

See attached Statement of Work (SOW) document.

Sole Source Determination

The sole source determination is based on the following:

The Tystar MiniTytan 4600 furnace is a critical tool in the BMF, essential for mission-critical operations. It contains numerous components that require ongoing monitoring and periodic service to maintain operational readiness. The furnace's schematics, software, hardware, and electronic components are proprietary to Tystar and are not made available to third-party vendors. Only Tystar has the specialized knowledge, authorized parts, and technical expertise necessary to service and maintain the system to OEM specifications, ensuring performance, reliability, and compliance with manufacturer standards. This exclusivity establishes that Tystar is the sole source capable of providing the required support.

Information for Interested Parties

Interested parties that believe they could satisfy the requirements listed above for NIST may clearly and unambiguously identify their capability to do so in writing by or before the response date for this notice. This notice of intent is not a solicitation and questions will not be entertained.

All responses to this notice of intent must be submitted via email to jennifer.lohmeier@nist.gov so that they are received no later than April 2, 2026 at 10:00 AM, Eastern Time.

Each response shall include the following Business Information:

- a. Contractor Name, Address,
- b. Point of Contact Name, Phone Number, and Email address
- c. Contractor (SAM) Universal Entity Identification (UEI)
- d. Contractor Business Classification (i.e., small business, 8(a), woman owned, HUBZone, veteran owned, etc.) as validated in System for Award Management (SAM). All offerors must have an active registration in www.SAM.gov.
- e. Capability Statement